Translation.

Memorandum of the principles of the course of actions taken towards the aboriginal Formosa.

(No 4.)

On the 30th of the eighth Month the Minister Yanaghihara went to the Tsung-li-yamen and held a conference with Wan-Keang and others; on this occation Yanaghihara told them as follows:

"The opinion, held by your government to manage the affair of the aboriginal Formosa, in their own way, is an idle talk having no practical use, and even if your government would seek to do so, they shall have nothing to do, in the face of our troops

stationed there; I ask therefore what measures do you mean to take towards our troops?" Wan-Keang and others replying to this question said: "The actions of our government in the case of your troops not retiring, might be clear, if you and your government could seriously consider concerning them." The conference of this day was very long and the mutual discussions contained several thousand words, but the above is their chief purport. The intention of the Chinese government is evidently to feign the desire of peace and prolonging purposely the time of discussions, to find out some fault in our words in order to throw upon us the blame of injustice.

On the 31st, Wan Keang addressed

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addressed an epitome of the conference of the preceding day, to the Minister Yanaghiwara and he pretended, that the question of Yanaghiwara has been worded by an unfriendly spirit.

On the 3rd of the ninth month, the Minister Yanaghiwara sent a dispatch to the Tsung-li-yamen, the chief purport of which is as follows:

"I think, that as our troops have already subjugated the Formosan savages and we are now doing the free actions, there should be no right on the part of another country to interfer in our actions. Then what reasons have your government to interfer? As for me I desire ardently to get the speedy solution of the present dif-

ficulty by the conference with you, and to hold up the friendly relation between the two countries, being very anxious about the future of the two countries. But, your Excellency think that our government always intertain an unfriendly feeling towards your country, to press on your government and consequently there is no need of the new question. Do you then pretend, that you entertain a friendly feeling towards us and we an unfriendly one towards you. This is quite contrary to the spirit entertained by me in negotiating with the Tsung-li-yamen and evidently our government would not consent to be so unjustly designated. But, as I fear the want of the means of demonstrating this matter in future

pedano I now have the honor to
addresso you the present despatch."

On the 10th of September the
ambassador Okubo arrived at Pekin
The same day the Minister Yana-
ghiwara received the reply in Writ-
ing of Young-lé-yamen whose sub-
ject was that the letter of your Ex-
cellencies implied that your disposi-
tion of the keeping of peace de-
pends on that of Wan-Cheang or
of us and that the letter of our ya-
men said that, we would make a
distinct explanation and that the
subject of the Writing, which Wan
Cheang lately handed you, and the
present letter, said the two nations
should keep peace and make mu-
tual in the case of some events,
always were for the keeping of
peace. And now it is our desire

that your Excellencies would attempt
to consolidate the ever lasting peace
between the two nations.
I hope that, the nations and two
Ministers on the charge of the affairs
would act with this disposition and
peacefully negotiate and discuss it.
Although your government will des-
patch another Minister to our coun-
try, he also should agree to these
words." The Chinese arguments
usually relate more than necessity,
their words are purposely written
misty and their aims dangerous,
of which this letter is most evi-
dent.

On 11th of the same month,
the ambassador Okubo sent through
the Minister yanaghiwara, the let-
ter of attorney translated to the
Chinese, to the Young-lé-yamen,
asking

asking for appointment of a day to hold conference there.

By the reply from the Chinese high officers of the Tsung-li-yamen, the 14th day was for conference.

The ambassador Okubo went on the appointed day to the Tsung-li-yamen, taking the Ministers Yanagiwara and others along with him, and met there with the Prince Kong and the nine high officers.

The principal subjects of the conference then said by Okubo are as follows:

I have seen all the drafts of conferences and correspondences between your Excellencies and the Minister Yanagiwara, on the subject of the Formosan savages. But, en resumé, they amount only to the argument on the part of your Excel-

lencies holding the aboriginal territory as belonged to China and that on the part of Yanagiwara holding the aboriginal territory as properly independent and having no master.

Though your government maintain the argument that the aboriginal territory belongs to China, how much has your government actually practiced towards it? Has been established the government office there? Has been posted the troops there?

The question of the Formosan savages is not a new affair but has continued from the fifth month to this day; The object of the present conference between your Excellencies and us, is to decide this question between the two nations; But when it is told that the answer can not be given the present conference

ference shall be useless, and the evidence can not be given to the argument held by your Excellencies at the meetings and communications with the Minister Yanagihiwara.

I have seen your despatches sent before in which Taiwanfoosi is quoted, but for what evidence it serves actually? International Law says that a state is not to be considered to have the right of possession or jurisdiction over the waste lands which are said to belong to it, unless the state actually has taken possession of it and established there its government office and thence obtained some profits. Have there been some officers to manage and collect the taxes from the Formosan territory where they are paid in? For

example, in what sense does the community of the Bontans pay in their taxes? Though it be mentioned on this that thing which is not actually practiced, proves nothing.

I have heard from the persons who have been at the head of the savages, the statement founded upon personal observation and experience. The statement says that the natives of the Formosa have not paid in the taxes at all. This is clearly seen from the copy of communication by writing of one officer Tookoo-Shima, in which the subject of lease of land has been discussed.

The first reply of your Excellencies was that the rules for official organizations, the taxes and import regulation are not provided for

for the Formosan territory. But subsequently we were told that, the system being used of the "private farms", there is no direct taxation.

The replies being so in contradiction, the Ambassador did not understand them, and the general sketch of what was intended to ask today, being given to the Chinese officers, it was demanded that the reply to it should be given tomorrow or at least the day after tomorrow.

First question on the part of your honoured country it is said that the land of the aboriginal tribes has been under the jurisdiction of your empire. If it be so, why have you not civilized the savages yet, until this day. If a country buy any

territory to be under its jurisdiction it must appoint the proper officers to lead and civilize the territory.

But I have been not told how much your honoured country has done with the aboriginal tribes for governing and civilizing them.

Second question at the present age when all the nations have intercourse which each other and every individual goes and comes mutually, every country has taken measures for the safety of navigations, and much more in the case of your honoured country. For the reputation of your honoured country as a virtuous country spreads all over the world. Then that you should have some compassion on the wretched people who were car-

ried

ried about by the Wakes is expected and required of you very much. But on the point of facts; you have frequently seen such Wretched people who have been treated violently by the savages, but without having any concern for them,

From this We might suppose that your have no compassion on the foreigners and are encouraging the savages in their barbarous acts is it possible?"

Chinese several Ministers said Formosa exit and consequently by the aboriginal tribes exist as its part; just as there is the department of Key chow in the province of Canton. In our Empire, the land is very extensive and government is very complicated, consequently in very

department of government there is the division of employment and attention; so that We could not particularly and minutely answer your question But we have one authority and that is Taiwanfusi (geographical accounts of Formosa) In the region like that of the savages in question, What custom requires is allowed, the assembling of people there is permitted, rebellions are chastised, submitting are admitted, and the civil officers are not appointed nor troops are not posted there. The subject of payment of taxes has its particular account in the recent communications, Visiting our Empire, even in the interior, the land taxes of large farms are not collected directly by the government, but through the principal

cipal persons in the respective places who collect and pay together the land taxes. Some peasants, therefore, do not know that the taxes are paid to the government and say that they have not tax to pay at all. From this we must not say that the land is out of the jurisdiction of China. The taxes of the aboriginal tribes have been through chieftains and managed in a very liberal manner; so that some savages never know that their taxes are paid to the government.

"In our conversations today there may apparently be mistakes confusion in the spoken language but as we both use the same written language if the written language is analyzed, matters

will be become evident;

And the Chinese ministers said "these two questions are very good; and they have taken on themselves the responsibility of answering for them.

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